



Rethinking Legal Education in the AI Era

University of Chicago Law School
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Overview

Artificial Intelligence is already impacting higher education and the legal profession, and the pace of change appears only to be accelerating. It is thus critical for us to use this moment to carefully reflect on how legal education should adapt. This memo describes the approach we are taking to legal education in the AI era.

The University of Chicago Law School has long been committed to providing our students with the most rigorous legal education possible. This commitment manifests itself through our faculty's dedication to teaching, our culture of challenging ideas through Socratic questioning and debate, and our grading policies that motivate students to engage with the material and that convey informative assessments of student performance to prospective employers. With AI disrupting higher education, our commitment to rigorous legal education also must mean openness to even rapid adaptation.

A willingness to rethink our practices is consistent with our law school's long history of innovation. We were the first law school to conceive of legal education as a graduate-level program and award the *Juris Doctor* degree. We also made pioneering contributions to interdisciplinary legal education that incorporates insights from the humanities, social sciences, and other academic disciplines, and to the creation of legal aid clinics that brought students into real-world cases.

We began the process of reflecting on how we should adjust our teaching in response to AI shortly after OpenAI publicly released ChatGPT at the end of 2022. Our law school formed an AI committee in early 2023 and began releasing policies and guidance on the use of AI. Since then, we have added an AI module into our first-year legal research and writing program, introduced several upper-level courses on AI and the law, founded an AI Lab to teach our students how to develop AI tools to help improve access to justice, and negotiated licenses with leading AI companies so that our students, faculty, and staff have access to the resources used by practicing lawyers.

Over the last year, we embarked on a more ambitious effort to reflect on how we should adapt our curriculum and policies in response to AI. This effort included extensive consultation with our community, including alumni, leaders of law firms, business leaders, legal technology executives, and law firm associates, as well as internal stakeholders at the Law School, including our faculty, staff, and students. We also surveyed the emerging academic and professional literature on how AI is changing legal practice and student learning, and how law schools can and should respond. And we have had steadfast support from our University of Chicago leadership, who have championed a *skeptical*, *ethical*, and *ambitious* approach to AI.

The feedback we have received throughout this process has been consistent: We need to ensure that our students actually learn to think critically, strategically, and independently without relying on AI; but we also must face the reality that AI tools are already widely available to our students, and our graduates will be expected to be prepared to use them in legal practice.

Our Strategic Vision

Based on what we learned from our consultations this year and our experience over the past three years, we have developed a strategic vision of how we should adapt legal education to the AI era. That vision has three themes:

1. Developing AI-resilient pedagogy and assessment;
2. Elevating the “essential human” skills that distinguish excellent lawyers; and
3. Teaching the responsible, effective, and ethical use of AI.

First, rather than attempting to ban AI or to ignore its risks to learning, our pedagogy and assessment should be designed to ensure our students learn how to think critically and solve legal problems with sound professional judgment. We thus need to ensure that our students do not rely on AI-provided shortcuts that help them produce easy answers but stunt intellectual growth. This requires rethinking the technology we allow in our classrooms, the tasks we assign our students, and the way we assess our students’ performance.

This requires developing AI-resilient pedagogy, by which we mean modes of classroom interaction and performance evaluation that reward students’ effortful and sustained engagement with the material, and discourage the offloading of work to AI tools. AI-resilient pedagogy does *not* mean trying to prevent all student use of AI. We do not want to deter uses of AI that can *increase* students’ effort and engagement, such as asking AI to clarify background concepts while reading before class or asking AI to generate practice problems while studying.

Second, AI may transform the legal profession, but many aspects of legal practice are likely to remain the domain of humans, not merely because humans are good at them, but because clients, employers, judges, and society will want humans to perform them. Among others, these aspects of legal practice are likely to include oral advocacy, strategic judgment, critical thinking, and developing and maintaining relationships with clients and stakeholders. To be sure, there are ways in which AI can assist humans with these tasks. But legal education should renew its focus on training students for the aspects of legal practice for which humans are likely to remain essential.

Third, AI is already a pervasive part of legal practice and will become more so. It is simply unrealistic to think that students and lawyers will not use AI. But legal technology is changing rapidly, and there is no guarantee that the specific AI tools or techniques that are ascendant today will be useful when current students enter practice. Thus, AI skills training requires more than producing students who can use the tools that are currently part of legal practice. Law schools must give students the analytical skills and theoretical toolkit to adapt as technologies change. This is how we will ensure that our students learn how to use AI responsibly, effectively, and ethically.

We believe that these three components of our strategic vision are consistent with the Law School’s longstanding commitment to rigorous legal training and with emerging scholarship on the role of AI

in education. They are also consistent with the University of Chicago's broader goal of ensuring that we teach our students to think *with*, *without*, and *about* AI.

Putting the Vision into Practice

The Law School is implementing this vision through policies that apply to the major elements of the law school curriculum: required 1L core courses, 1L legal research and writing, elective courses, upper-level writing requirements, and clinical education. We outline these policies below.

Required 1L Core Courses. The 1L year is a crucial, formative period for law students. It lays the foundation for the development of critical thinking, legal writing skills, and strategic judgment throughout law school and in professional life. During the 1L year, the value of effortful struggle, even with concepts that are second nature to experienced lawyers, is paramount. Student expertise at judging the quality of AI output is at its nadir. The need for faculty to work together to create a consistent, AI-resilient approach to pedagogy is especially acute in this setting. For this reason, the Law School is adopting rules that set consistent norms for AI-resilient teaching and assessment across all 1L sections in all 1L core courses (Civil Procedure, Torts, Elements of the Law, Contracts, Property, Criminal Law, Constitutional Law, Statutory Interpretation, and Transactional Lawyering).

We will be piloting a coordinated approach to classroom and examination policies for the core 1L curriculum during the 2026–2027 academic year. Across all 1L sections, we will prohibit the use of electronic devices such as laptops, tablets, and phones in the classroom. There will be some limited exceptions to this policy. For instance, professors can designate classroom “scribes” who can use electronic devices to take notes for the class, professors can authorize electronic device use for specific tech-enabled activities (such as interactive in-class polling), and we will ensure that disabilities are accommodated in conformity with applicable law, as appropriate for the program of study. Additionally, examinations will be in-class without access to the internet, electronic files, or apps. And most of all, we will continue our longstanding tradition of emphasizing the Socratic Method as part of these courses. This coordinated approach reflects our experience, and an emerging scholarly consensus, that active, in-person engagement is conducive to learning. Reliance on devices to take notes or assist with answering questions tends to inhibit reflection and reasoning.

1L Legal Research and Writing. We are taking a different approach to 1L Legal Research and Writing (LRW). Many (if not most) students will spend their 1L summers in professional environments where they will be expected to use AI tools for research and writing tasks. Thus, the LRW curriculum must also include instruction in the responsible, effective, and ethical use of AI. At the same time, even AI skills training must itself be AI-resilient. By the end of their 1L year, our students should have the ability to review, assess, and improve the output of AI tools. Developing *these* skills requires human interaction as much as it requires AI tools. Hands-on work with AI tools in classroom settings and individualized feedback on writing must be components of instruction on the use of AI in legal research and writing.

We will thus be piloting a new structure to the LRW curriculum during the 2026–2027 academic year. Our approach will treat writing *without* AI as the foundation and will layer writing *with* AI onto it. Throughout the year, students will write without AI, while also using AI for research, revision, iterating on drafts, and preparation for oral argument. Students and their instructors will review together both

their writing and their use of AI. In this way, students will develop their own writing skills independent of generative AI tools while also developing their ability to supervise AI and critique its output.

Elective Courses. As students progress from their foundational training in required 1L classes to elective courses, the need for coordination across sections abates, and the benefits of heterogeneity increase. Thus, in the upper-level curriculum and the elective courses that 1Ls take in the Spring, the goal of our AI policies shifts to providing guidance and fostering experimentation. For these courses, the use of the Socratic Method, no-device policies, and in-class, no-access exams will remain, but as default rules rather than required policies.¹

In all elective courses, we will encourage instructors to experiment with pedagogy. Some methods of teaching and evaluation have enhanced value as AI-resilient methods. These include modes of formative assessment such as midterms, group projects, oral presentations, and peer-to-peer feedback. At the same time, AI itself creates opportunities for new forms of teaching and assessment. Our faculty have already begun experimenting with tools such as custom chatbots that serve as study aids, AI-generated practice problems, and the like. None of these particular modes of teaching and evaluation is required, but we will support experimentation with modes such as these.

Finally, as students advance in their legal training, the need for classes that explore responsible, effective, and ethical use of AI grows. To this end, we have already added a number of courses that explicitly focus on the use of AI (and even the creation of AI tools for legal work). These courses are all offered as electives, so that students can select how many AI-focused classes, and which of these classes, they wish to take. We plan to continue to grow our upper-level offerings on AI.

Upper-Level Writing Requirements. Writing is crucial to lawyering. Not only do most lawyers do a considerable amount of writing, but the practice of writing cultivates the practice of deep, sustained, and critical thought. Yet the primary modes of writing in the upper-level curriculum—research papers and reaction papers—are under stress in a world in which AI can produce plausible and substantial academic papers without the kind of human input that paper-writing is intended to involve.

This is a particularly difficult challenge. Some responses, such as requiring writing to take place in supervised, in-class settings, address the need to cultivate practice while ensuring original human effort. Yet such requirements lose an important aspect of the exercise of writing, which is sustained and independent effort across hours, days, and weeks to create a significant piece of work. This is a valuable formative exercise for thinkers and lawyers, and we cannot wholly abandon it in favor of writing methods that are easier to administer in AI-resilient ways.

Thus, we are developing an approach that introduces elements of AI-resilient design while sustaining the project of training students to undertake ambitious and independent writing projects. The rule-based element is a change to our “SRP” (substantial research paper) requirements, which will take effect beginning with this year’s class of rising 2Ls. Writing an SRP is a requirement for completion of a JD degree, and the criteria for an SRP already include (roughly) substantial length, independent

¹ We will continue to offer courses that are cross-listed with other units, and students will still be allowed to enroll in courses offered by other units. Depending on the rules of the other units, these courses may have different policies than the electives offered solely within the Law School. We will work with instructors and other units to navigate any conflicts that may arise in the policies of different units.

research, original ideas, incorporation of feedback from faculty, and iteration across drafts. These requirements incorporate elements of serious academic and legal writing. We will be adding one additional requirement, which is that all students will be required to engage in an oral discussion of their SRP with their supervising professor, in an in-person setting. This discussion will occur after a complete draft (or final version) of the paper has been submitted to the professor. The discussion could take place one-on-one, or as a class presentation in the style of an academic workshop. Either way, the oral exchange will involve the student answering questions that probe the reasoning of the paper and the implications of its arguments.

The motivation for this new requirement is twofold. First, this requirement makes the SRP more AI-resilient by providing a test of a student's thinking about what they have written in a setting where they cannot lean on technology. It does so without sacrificing any of the unsupervised, independent effort that must be a part of serious, sustained writing.

Second, this requirement imparts valuable skill-building for both legal practice and academic life that is justified on its own merits, without regard to AI. We are training students for a profession where they will be called upon to explain and defend their ideas in person and in real time, whether in the courtroom, during negotiations, when counseling clients, or when working in collaboration with other lawyers. Indeed, one of the hallmarks of intellectual life at the University of Chicago Law School is our robust workshop culture, in which faculty regularly present their own research paper drafts and address questions, suggestions, and criticisms from colleagues. An oral discussion component to the SRP is a way to formalize a piece of that workshop culture for all students.

Experimentation is the other element of our approach to upper-level writing assignments. For all upper-level writing, we encourage faculty to experiment with different modes of structuring writing assignments in AI-resilient ways. Some examples could include:

- In-class student workshops of their papers;
- Writing reaction papers or portions of longer papers in supervised, in-class settings;
- Group presentations or panel discussions by students with related reaction paper topics;
- Students, individually or in groups, leading portions of class discussion relevant to their reaction paper topics; and
- One-on-one discussion of a research paper with the professor outside of class.

Many other possibilities exist, of course, and the point of experimentation is to find the options that best ensure our students learn writing and critical thinking skills.

Clinical Education. The role that clinical education plays in preparing students for practice will be even more important in the AI era. Client needs and expectations will create pressure for graduates to be able to immediately use AI responsibly, effectively, and ethically. As a practical matter, this means that for many graduates, law school clinics are the best opportunity to receive close and careful supervision of their use of AI tools.

Further, clinical work often goes to the heart of what is essentially human about lawyering: advocating to judges, juries, and policy makers; understanding and being present to clients; strategizing about both the doctrinal and the practical aspects of a case; and developing rapport with counterparties and

adversaries. These are all skills that our students learn from our clinical faculty. Thus, clinics are a crucial site for learning *with*, *without*, and *about* AI.

To these ends, we have been obtaining access to AI tools for our clinics. These include general-purpose legal AI tools and tools that are specifically designed for transactional work, immigration work, and litigation discovery. We are also in the process of procuring additional tools. Further, the clinics are each developing their own policies, tailored to their practice areas, for appropriate use of AI and to safeguard against AI-created errors in court filings and other work product. As these tools and policies are implemented, the goal is to ensure that all students in clinics are working both with AI and without AI for real clients in real practice settings.

Final Thoughts

Beyond these changes to our curriculum, three additional principles will inform our thinking.

First, we will strive to ensure that our AI policies are transparent, explicit, and explained. To that end, each instructor must state their AI policy explicitly in the course syllabus and describe the policy in class. And, as we confront new circumstances that require changes to our policies, we will communicate those clearly to our students.

Second, we will try to stay up to date on new AI tools and the best practices for how to use them. We have already been working with alumni and other employers to understand how legal practice is incorporating AI, and we have been partnering with technology firms to secure access for our students, faculty, and staff to the AI tools that leading firms are using. We have also been having regular conversations among our faculty to share information about the use of AI. We are committed to continuing to do what we can to stay current in this time of rapid change.

Finally, we will regularly reconsider these policies with ongoing input from our faculty, students, and alumni. We recognize that no statement of an AI strategy or vision can be final. Technology is changing too fast. Thus, all the changes we are currently making will be subject to review, reconsideration, and revision as we learn more and as both technology and the practice of law evolve.